

Advertisement

SPACE



SpaceX faces two new lawsuits alleging safety-related retaliation



When longtime supervisor Robert Markert warned SpaceX leaders that one part of the rocket fairing recovery process could “easily cause serious injury or death,” he alleges he was ignored because “it was the more economical solution,” according to a recently filed lawsuit. A few months later, he was out of the job.

Markert is one of two former SpaceX employees who have filed separate wrongful-termination lawsuits, both of which were removed to federal court earlier this month. The two complaints make similar allegations about how speed and cost-saving triumphed over other considerations — including safety.

IMAGE CREDITS: NASA/BILL INGALLS

The lawsuits arrive as SpaceX races to get its Starship ultra-heavy rocket ready to complete missions for NASA, commercial customers, and to launch the company’s Starlink satellite internet service. Beyond the Starship program, SpaceX also operates the most frequently launched rocket in history, the Falcon 9, which has flown 87 times so far this year.

Markert spent 13 years at the company before being terminated in April. He alleges that during his tenure technicians were sometimes required to work 15 to 20 days in a row, but when he brought this up to supervisors, he was told “the schedule comes first.” That punishing schedule, performed in a high-stress environment, resulted in injuries

TEC DISRUPT

October 27-29, 2025 | San Francisco

Put your brand in front of 10,000+ tech and VC leaders across all three days of Disrupt 2025. Amplify your reach, spark real connections, and lead the innovation charge. Secure your exhibit space before your competitor does.

[Book Your Table >](#)

Most Popular



- Key sections of the US Constitution deleted from government’s website
- Three weeks after acquiring Windsurf, Cognition offers staff the exit door
- Roku launches Howdy, a \$2.99 ad-free streaming service
- Spotify raises subscription prices
- The uproar over Vogue’s AI-generated ad isn’t just about fashion

Markert alleges the ship technicians were too afraid to report.

When Markert suggested the company prioritize trainings and certifications, he was told “there is no time for that and the company would not spend money on it,” according to the complaint.

The second lawsuit, filed by SpaceX plumber David Lavalle, alleges he was fired after the company failed to accommodate multiple work-related injuries, including a fractured foot, severe neck pain, injuries to his back and shoulders, and wrist pain. While Lavalle filed for workers’ compensation for some of these injuries, he did not do so for all for fear of retaliation, the complaint says.

Nine days after requesting medical leave for gout-induced knee pain, Lavalle was terminated. Lavalle, who is 60 years old, joined the company in 2014. He alleges in the complaint he was part of a wave of firings of older staff members, led in part by 28-year-old Scott Hiler, whom SpaceX hired as a new senior manager late last year.

- Your public ChatGPT queries are getting indexed by Google and other search engines
- The best dating apps aren’t even dating apps

TC

Tech and VC heavyweights join the Disrupt 2025 agenda

Netflix, ElevenLabs, Wayve, Sequoia Capital — just a few of the heavy hitters joining the Disrupt 2025 agenda. They’re here to deliver the insights that fuel startup growth and sharpen your edge. Don’t miss the 20th anniversary of TechCrunch Disrupt, and a chance to learn from the top voices in tech — grab your ticket now and save up to \$675 before prices rise on August 7.

San Francisco | October 27-29, 2025

A lawyer representing Markert declined comment, while Lavallo's attorney did not immediately respond to TechCrunch's request for comment. SpaceX did not respond to TechCrunch's request for comment.

[Recent reporting from TechCrunch](#) showed that SpaceX outpaced its peers in worker injury rates for 2024. Data from the Occupational Safety and Health Administration showed that the Starbase complex in Texas recorded an injury rate of 4.27 per 100 workers last year, nearly triple the aerospace manufacturing average of 1.6.

Markert, a resident of Los Angeles County, doesn't expressly state where he worked at SpaceX. The lawsuit does note he worked with ship technicians. SpaceX's west coast rocket fairing recovery operations count the highest injury rates of all SpaceX sites, the OSHA logs show, with an injury rate of 7.6 per 100 workers for the west coast operations.

Both complaints were filed in Los Angeles County Superior Court and were then removed by SpaceX to the U.S. District Court for the Central District of California.

Topics: [lawsuits](#) [Space](#) [SpaceX](#)



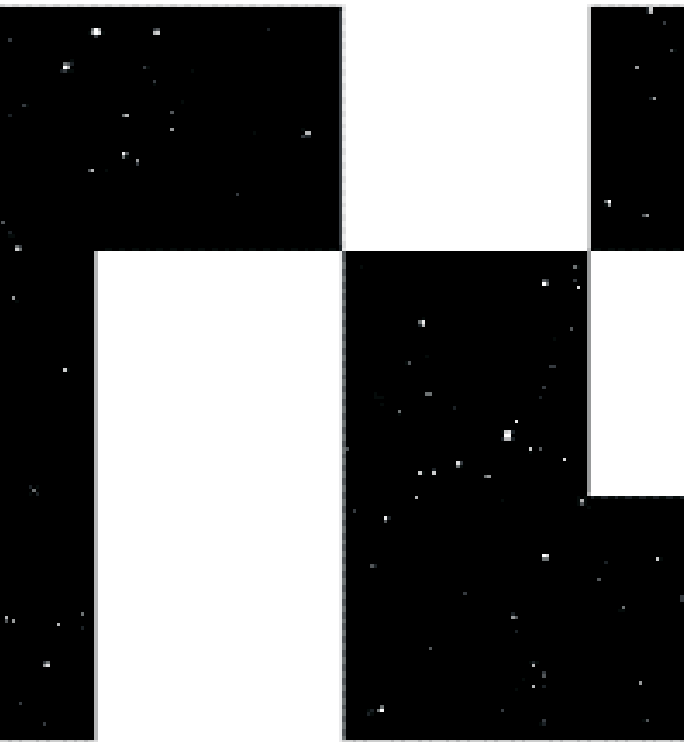
Aria Alamalhodaie

Reporter, Space and Defense |

Aria Alamalhodaei covers the space and defense industries at TechCrunch. Previously, she covered the...

View Bio >

KEEP READING



SPACE



TechCrunch Space: Inverted

Aria Alamalhodaei — 3:00 PM PDT · October 21, 2024

IMAGE CREDITS: TECHCRUNCH

Hello, and welcome back to TechCrunch Space. We are insanely close to TechCrunch Disrupt — have you checked out the [final agenda for the Space Stage](#) yet!? Come hear the latest and greatest insights from top space entrepreneurs and investors.

Advertisement

NB: If you're wondering why last week's TechCrunch Space didn't include a single mention of Starship's fifth integrated flight test, it's because these editions are finalized on Friday. Sometimes that means we miss important news — very important, chopstick-y news. Sorry!

Want to reach out with a tip? Email Aria at aria.techcrunch@gmail.com or send a message on Signal at 512-937-3988. You can also send a note to the TechCrunch crew at tips@techcrunch.com. For more secure communications, [click here to contact us](#), which includes SecureDrop [instructions](#) and links to encrypted messaging apps.

Story of the week

SpaceX filed a lawsuit against a California agency last week after the body rejected a proposal to increase the company's launches from the state's coastline to 50 per year.

The California Coastal Commission made its decision at an October 10 meeting, despite the U.S. Air Force endorsing the plan on the grounds that more launches of Starlink and Starshield, the defense-focused unit, are critical to national security.

In the lawsuit, SpaceX says that the commission engaged in "naked political discrimination" when some commissioners cited the political activity of CEO Elon Musk, while also attempting to unlawfully regulate federal agency activities. The first part of the complaint has gotten most of the headlines, and SpaceX will need to prove in court that the commission's decision was substantially influenced by Musk's politics. But the second part is arguably more substantial: What is the final legal authority over launch activities on a defense base,

Newsletters

[See More ↗](#)

Subscribe for the industry's biggest tech news

TechCrunch Daily News



Every weekday and Sunday, you can get the best of TechCrunch's coverage.

Startups Weekly



Startups are the core of TechCrunch, so get our best coverage delivered weekly.

TechCrunch Week in Review



Get the best of our coverage, delivered to your inbox every Saturday.

TechCrunch Mobility



TechCrunch Mobility is your destination for transportation news and insight.

No newsletters selected.

Email address

Subscribe

By submitting your email, you agree to our [Terms](#) and [Privacy Notice](#).

and do those activities count as federal or private when conducted by a commercial entity on behalf of the Department of Defense (DoD)?



FALCON 9 WITH 10 IRIDIUM NEXT COMMUNICATIONS SATELLITES AT SPACE LAUNCH COMPLEX 4E AT VANDENBERG AIR FORCE BASE, CALIFORNIA. FROM JANUARY, 2017.

IMAGE CREDITS:SPACEX

TC

Tech and VC heavyweights join the Disrupt 2025 agenda

Netflix, ElevenLabs, Wayve, Sequoia Capital — just a few of the heavy hitters joining the Disrupt 2025 agenda. They're here to deliver the insights that fuel startup growth and sharpen your edge. Don't miss the 20th anniversary of TechCrunch Disrupt, and a chance to learn from the top voices in tech — grab your ticket now and save up to \$675 before prices rise on August 7.

San Francisco | October 27-29, 2025

REGISTER NOW

Deal of the week

I had a lot of fun chatting with some of the co-founders of Wyvern, a Canadian hyperspectral imaging startup. The company just raised \$6

million led by defense-focused VC firm Squadra Ventures to, among other things, expand into the U.S. market.

“As a Canadian company, we need to enter the U.S. market. We need to access key defense programs and bid on those sorts of programs of record,” co-founder Kurtis Broda said. (Co-founder Kristen Cote added, however, that “We are proud to be Canadian.”)



WYVERN IMAGERY.

IMAGE CREDITS: [WYVERN](#)

What we're reading

Billionaire Michael Bloomberg took aim at NASA's Artemis program this week in an op-ed at Bloomberg, calling it “a colossal waste of taxpayer money.” Beyond the engorged budgets of the Space Launch System rocket and other parts of the Artemis architecture, he points to a feasible commercial alternative that's staring everyone right in the face: SpaceX.

“A celestial irony is that none of this is necessary. A reusable SpaceX Starship will very likely be able to carry cargo and robots directly to the moon — no SLS, Orion, Gateway, Block 1B or ML-2 required — at a small fraction of the cost. Its successful landing of the Starship booster was a breakthrough that demonstrated how far beyond NASA it is moving.”



NASA'S SLS ROCKET LIFTS OFF FOR THE ARTEMIS I MISSION.
IMAGE CREDITS:KEVIN DIETSCH / STAFF / GETTY IMAGES

Topics: [Artemis](#) [Space](#) [SpaceX](#) [TC Space](#) [Wyvern](#)

[f](#) [X](#) [in](#) [reddit](#) [envelope](#) [link](#)

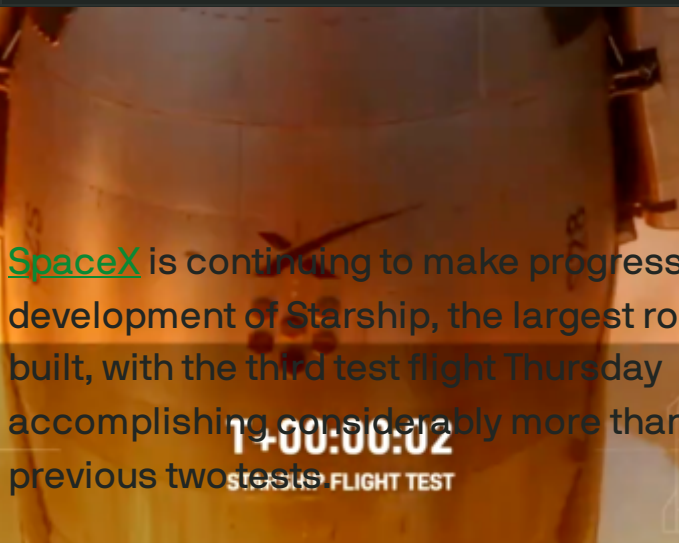


Aria Alamalhodaei
Reporter, Space and Defense | [X](#)

Aria Alamalhodaei covers the space and defense industries at TechCrunch. Previously, she covered the...

[View Bio](#) >

KEEP READING

[Startups](#)[AI](#)[Venture](#)[Apps](#)[Apple](#)[Events](#)[Podcasts](#)[Newsletters](#)

[SpaceX](#) is continuing to make progress on the development of Starship, the largest rocket ever built, with the third test flight Thursday accomplishing considerably more than the previous two tests.

The 400-foot-tall Starship rocket lifted off from SpaceX's Starbase facility in southeastern Texas at 8:25 a.m. local time. Although SpaceX has been developing Starship for years, this is only the third time the company has attempted an orbital mission.

After liftoff, Starship proceeded through a nominal — aerospace speak for normal — ascend. All 33 Raptor engines on the Super Heavy booster performed as designed, and the two stages separated around 2 minutes 45 seconds into the mission. Critically, the launch vehicle nailed a novel stage separation technique called “hot staging,” where the upper stage (also called Starship) lights its engines to push away the Super Heavy booster. The hot-staging technique was performed for the

Latest in Space

[See More](#)

TECHCRUNCH DISRUPT 2025



Final call: TechCrunch Disrupt 2025 ticket savings end tonight

TechCrunch Events
- 18 hours ago

TECHCRUNCH DISRUPT 2025



Only 2 days left to save \$675 on your TechCrunch Disrupt 2025 ticket

TechCrunch Events
- 2 days ago

SPACE



SpaceX faces two new lawsuits alleging safety-related retaliation

Aria Alamalhodaei
- Jul 30, 2025

first time, ever, during the second Starship test flight last November.

From there, the Starship upper stage continued its ascent to orbit. SpaceX CEO Elon Musk congratulated the team on X, saying, “Starship reached orbital velocity!”

Starship reached orbital velocity!

Congratulations [@SpaceX](#) team!!

— Elon Musk (@elonmusk) [March 14, 2024](#)

TC

Tech and VC heavyweights join the Disrupt 2025 agenda

Netflix, ElevenLabs, Wayve, Sequoia Capital — just a few of the heavy hitters joining the Disrupt 2025 agenda. They’re here to deliver the insights that fuel startup growth and sharpen your edge. Don’t miss the 20th anniversary of TechCrunch Disrupt, and a chance to learn from the top voices in tech — grab your ticket now and save up to \$675 before prices rise on August 7.

[San Francisco](#) | October 27-29, 2025

[REGISTER NOW](#)

The booster executed what’s called a boostback burn to adjust its trajectory as it aimed to splash down in the Gulf of Mexico — Falcon 9’s booster performs the same maneuver to vertically land back on Earth — but its engines failed to relight for the landing burn phase. The Super Heavy was subsequently lost.

The company nailed another new milestone after it opened Starship's payload door for the first time. This capability is crucial for SpaceX's plans to rapidly deploy many hundreds of next-generation Starlink satellites. Another demonstration, a propellant transfer demo, was also completed, though the company did not go into the results of this test.

Propellant transfer is a crucial part of the company's plans to return humans to the moon for NASA. As part of SpaceX's plans for that NASA mission, the company has settled on a mission architecture that could include more than a dozen Starship refueling trips.

Being able to refuel the vehicle is also necessary for a future Mars mission.

Starship continued on its coasting phase, but after around a half hour the company said it wouldn't attempt to relight the engines to proceed with the test. SpaceX didn't elaborate on the livestream why it decided not to continue.

Instead, they let gravity do its work, and the Earth's powerful gravitational forces pulled Starship back through the lower atmosphere. Ultimately, mission controllers failed to reestablish communications with Starship, leading SpaceX's Dan Huot to announce that they had lost the ship: "No splashdown today, but again just it's incredible to see how much further we got this time around," he said.

Topics: [Elon Musk](#) [oft-3](#) [Space](#) [SpaceX](#) [Starship](#)





Aria Alamalhodaie

Reporter, Space and Defense | [X](#)

Aria Alamalhodaie covers the space and defense industries at TechCrunch. Previously, she covered the...

[View Bio](#) >

KEEP READING



IMAGE CREDITS: [SPACEX](#)

SPACE



SpaceX launches mammoth Starship rocket and brings it back for the first time

Aria Alamalhodaie — 7:33 AM PDT · June 6, 2024

[SpaceX](#) has shown once again that subjecting rocket hardware to the real-world flight environment pays dividends. In its latest launch, the company achieved a key milestone in its Starship flight test campaign: returning the booster and the

TECHCRUNCH DISRUPT

October 27-29, 2025 | San Francisco

upper stage back to Earth in controlled ocean splashdowns.

Bringing the two parts of the launch vehicle back — the Super Heavy booster and the upper stage, which is also called Starship — are essential to the company’s long-term plans to make Starship the first-ever fully reusable rocket. But to reuse, you have to recover, and SpaceX is proving that it will be able to do just that with Starship.

The ultimate goal is to fly Super Heavy and the Starship upper stage back to Starbase, SpaceX’s private Starship launch and development site in southeast Texas, where they’d make vertical landings on solid ground. A controlled ocean splashdown is the first step toward executing this plan. SpaceX was the first company to ever reuse a part of a rocket that’s flown to space, but even its workhorse Falcon 9 rocket is only partially reusable (the second stage is expended in orbit).

Starship lifted off from Starbase at 8:50 a.m. CT, the fourth launch in the rocket test campaign. SpaceX aims to use the rocket to launch heavier versions of its Starlink satellites, deliver astronauts to the moon for NASA, and eventually make life multi-planetary.

Although this is only the fourth time that the mammoth Starship has ever launched to orbit, the test went remarkably smoothly. Only one of the 33 Raptor engines on the Super Heavy booster went out, and the company completed its novel “hot-staging” stage separation technique. (During hot staging, the engines on the upper stage ignite temporarily while it is still attached to the booster, essentially helping to “push” the booster away.) SpaceX also successfully jettisoned the “hot stage ring” that sits in between Starship and Super Heavy for the first time, in order to reduce the weight of the booster as it returns to Earth.

Put your brand in front of 10,000+ tech and VC leaders across all three days of Disrupt 2025. Amplify your reach, spark real connections, and lead the innovation charge. Secure your exhibit space before your competitor does.

[Book Your Table >](#)

Most Popular



- Key sections of the US Constitution deleted from government’s website
- Three weeks after acquiring Windsurf, Cognition offers staff the exit door
- Roku launches Howdy, a \$2.99 ad-free streaming service
- Spotify raises subscription prices
- The uproar over Vogue’s AI-generated ad isn’t just about fashion
- Your public ChatGPT queries are getting indexed by Google and other search engines
- The best dating apps aren’t even dating apps

Shortly after launch, the booster successfully splashed down in the Gulf of Mexico. A little over an hour after launch, Starship followed suit, surviving the extreme heat from traveling through the Earth's atmosphere at hypersonic speeds and splashing down in the Indian Ocean.

Super Heavy has splashed down in the Gulf of Mexico pic.twitter.com/hlY3Gkq57k

— SpaceX (@SpaceX) [June 6, 2024](#)

Of the 18,000 heat shield tiles on the ship, engineers intentionally replaced one with a thinner version and removed two tiles completely in order to “measure how hot things get without tiles in those locations, while also testing some thermal protection options,” the company said. SpaceX CEO [Elon Musk later said on X](#) that the ship successfully splashed down despite having a damaged flap and losing “many tiles.” Musk has said before that the heat shield system is [“the biggest remaining problem”](#) in Starship development.

Starship has come a long way since [its first orbital test flight in April 2023](#) — that launch saw the mid-air explosion of both parts of the rocket and the dysfunction of many of the rocket engines. Each subsequent test has gone further, and Starship reached orbit for the first time in the third test this past March. During that test, SpaceX also tested capabilities that will be key for delivering payload to space, including opening and closing the payload door.

Topics: [Elon Musk](#) [rocket](#) [Space](#) [Space](#) [SpaceX](#)

[Starship](#)

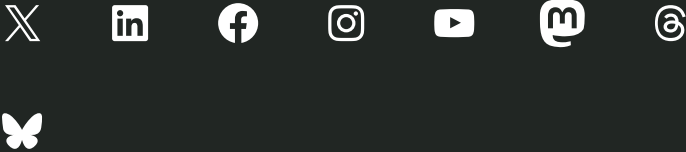


Aria Alamalhodaei
Reporter, Space and Defense | [X](#)

Aria Alamalhodaei covers the space and defense industries at TechCrunch. Previously, she covered the...

[View Bio](#) >

Loading the next article



- [TechCrunch Staff](#)[Contact Us](#)[Advertise](#)[Crunchboard Jobs](#)[Site Map](#)
- [Terms of Service](#)[Privacy Policy](#)[RSS Terms of Use](#)
- [OpenAI](#)[Perplexity](#)[Cisco](#)[DeepMind](#)[Windsurf](#)[Tech Layoffs](#)[ChatGPT](#)